

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING**

Blue Ember Reply Brief

United States Court of Appeals for the Fourth Circuit

Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc.

No. SYN-CA4-26-CV-4105

Filed April 20, 2026

Granite Heron candidly accepts the decisive record facts: both Rule 50(a) motions challenged causation only; both left mitigation for the jury; neither sought a fixed \$1,500,000 deduction. Its defense therefore depends on treating an expressly excluded issue as functionally identical to the issue actually raised. Rule 50 does not allow that transformation.

The difference is not formal wording. Causation asked whether Granite Heron’s breach produced gross loss, with Blue Ember carrying the burden. Mitigation assumed caused loss and asked whether Blue Ember’s later conduct unreasonably failed to reduce it, with Granite Heron carrying the burden. Separate proof, instructions, and verdict questions reflected that division. A shared effect on net recovery cannot make the grounds the same.

Plyler v. Cox, 145 F.4th 501, 510–11 (4th Cir. 2025), controls the boundary. A distinct basis first raised under Rule 50(b) is unavailable, although the general sufficiency issue actually raised under Rule 50(a) remains reviewable. Granite Heron preserved causation, not mitigation. The court should reverse JMOL while leaving the independent Rule 59 ruling intact. The exact relief remains fourfold: reverse mitigation JMOL, affirm the conditional damages new trial, affirm its financial scope, and vacate the amended judgment with remand.

The motion text did not preserve mitigation judgment

Rule 50(a)(2) asks what judgment the movant sought and what law and facts allegedly required it. Granite Heron's October 10 answer was explicit: judgment on causation only. The motion stated that it did not seek judgment on failure to mitigate, did not ask the court to decide Blue Ember's response to Cobalt Finch, and left any net deduction to the jury.

The October 14 motion renewed the causal ground after all evidence. It again declined to broaden the request to mitigation and again left reasonableness and amount to the verdict. The court denied the stated motion and submitted the issues separately. Granite Heron's present acknowledgment confirms that there is no factual dispute about the words or requested relief.

Only the November 10 motion asked the judge to replace the jury's \$300,000 deduction with \$1,500,000. That request invoked a different burden and a specific arithmetic model. The fact that Cobalt Finch evidence had been admitted did not announce that Granite Heron considered the proof legally one-sided. Parties routinely try an affirmative defense while agreeing that jurors should decide it.

Because the mitigation insufficiency was never asserted before submission, the postverdict request was new rather than renewed.

Causation and mitigation cannot be merged as “recoverable delay”

Granite Heron’s label describes net arithmetic, not legal identity. A plaintiff first proves loss caused by breach. Mitigation then limits recovery if the defendant proves unreasonable post-injury conduct and quantifies avoidable loss. *Thermal Design* and *Clark* place that defense on Granite Heron. Treating the inquiries as one ground would obscure who had to prove what and when.

The record demonstrates the division. Monitor, custody, quality, and program evidence addressed whether the excursion caused lot rejection, replacement work, and delay. Cobalt Finch’s capacity, qualification, commitment cost, and possible schedule benefit addressed what Blue Ember could reasonably have done afterward. Some expert inputs overlapped, but the legal deficiencies Granite Heron could assert were different.

The special verdict first found breach and causation, then stated three gross categories, then applied mitigation. The instructions similarly separated Blue Ember’s burden from Granite Heron’s affirmative-defense burden. Granite Heron requested that arrangement after choosing not to seek pre-verdict mitigation judgment.

If any two defenses affecting damages could be united under the phrase “recoverable amount,” Rule 50(a)’s specification requirement would provide no notice. The rule protects the opportunity to address the particular alleged insufficiency, not merely awareness that a lower award is desired.

Unitherm, Price, and Plyler resolve the renewal boundary

Unitherm Food Systems, Inc. v. Swift-Eckrich, Inc. treats the pre-verdict motion and postverdict renewal as connected procedural stages. That structure permits the trial judge to confront a claimed evidentiary gap before the jury is discharged and then assess the verdict, along with possible new-trial consequences, on the same properly presented basis.

Price v. City of Charlotte states that the reason advanced under Rule 50(b) must have been raised under Rule 50(a) and reasserted after verdict. *Plyler v. Cox*, 145 F.4th 501, 510–11 (4th Cir. 2025), then illustrates the exact boundary: a late defendant-specific basis was unavailable, while the general sufficiency challenge actually made before verdict remained reviewable. Granite Heron raised causal insufficiency before verdict and mitigation insufficiency afterward.

Granite Heron says Blue Ember already possessed and answered all mitigation evidence. That misses the procedural notice. Trial proof told Blue Ember that jurors would evaluate the defense. A Rule 50(a) motion would have told Blue Ember that Granite Heron asserted no reasonable jury could reject its \$1,500,000 model, allowing a request to reopen, sharpen the legal response, or seek a ruling before deliberations.

The company's express disclaimer made that notice impossible. Ordinary application of binding precedent requires reversal without reaching whether mitigation evidence could support JMOL.

Wiener concerns appellate theory after Rule 50(b)

Wiener v. AXA Equitable Life Insurance Co., 153 F.4th 413, 422 (4th Cir. 2025), addressed variation between a sufficiency issue preserved in Rule 50(b) and the appellate theory supporting that issue. It rejected perfect alignment between those two presentations. It did not authorize movement from one Rule 50(a) ground to a distinct Rule 50(b) basis.

This case presents the antecedent problem governed by *Plyler*. Granite Heron did not state the mitigation ground imperfectly; it stated that mitigation was not a ground. It did not merely omit a model detail; it assigned reasonableness and deduction to the jury. The later basis was distinct even though the preserved general causal challenge remains reviewable.

The district court emphasized full litigation of Cobalt Finch evidence. But neither *Plyler* nor *Wiener* equates trial of evidence with a request for judgment. Rule 50(a) requires a movant to specify the judgment sought and the supporting facts and law. Evidence may support multiple issues, and a party can deliberately present a jury defense without seeking its judicial resolution.

Granite Heron's candid brief confirms that the court need not debate what happened. The legal question is whether an express exclusion can preserve the excluded ground. *Plyler* answers no; *Wiener* never reached that Rule 50(a)-to-Rule 50(b) question.

The unpublished *Boley* discussion supplies no alternative path

The unpublished majority in *Boley v. Armor Correctional Health Services, Inc.* discussed Rule 50's notice, cure, fairness, and Seventh Amendment functions. Those considerations reinforce Blue Ember's position: Granite Heron selected a causation-only request and gave no pre-verdict notice that mitigation proof was legally insufficient.

The majority's separate treatment of possible fundamental error is nonprecedential. Granite Heron appropriately does not invoke it as a controlling bypass. The concurrence read *Unitherm* to foreclose appellate review when an issue was not properly presented through both stages. Neither opinion supplies binding authority beyond *Unitherm*, *Price*, *Plyler*, and the correctly confined appellate-theory rule in *Wiener*.

There is also no need for an exceptional-error theory. Blue Ember does not ask this court to review an unpreserved issue; it asks the court to reverse a district judge's grant of unpreserved JMOL. Granite Heron retains its properly filed alternative Rule 59 request and will have a new chance to prove mitigation if the conditional ruling is affirmed.

That ordinary result protects both procedure and fairness. It denies a fixed judicial deduction unavailable under Rule 50 while preserving the trial judge's independent authority to order a new financial trial on weight grounds.

Sufficiency of the mitigation evidence cannot cure preservation

Granite Heron devotes substantial argument to the held Cobalt Finch slot, staged diligence, qualification path, and Dr. Park's model. Those points may explain why the district court ordered a new trial. They do not establish that the Rule 50(a) motions sought judgment on mitigation.

Even on the merits, the evidence involved judgment under uncertainty. Cobalt Finch had not qualified the BE-214 process, completed change control, guaranteed the suite, or eliminated technical and timing risk. Blue Ember faced a short decision period and potential duplicated cost. A reasonable jury could assign less expected benefit than Park's calculation, which is precisely why mitigation went to the jury.

This court need not decide whether the \$300,000 answer satisfied the Rule 50 sufficiency threshold. The threshold procedural defect comes first. Rule 50(b) cannot reach a ground absent from the specified pre-verdict request, however strong the movant later considers the evidence.

The independent Rule 59 framework gives Granite Heron an appropriate remedy for its weight argument. At retrial it may present the same capacity and model proof, while Blue Ember may present the associated risks. A new jury, rather than a postverdict judicial substitution, will determine gross damages and mitigation.

The conditional Rule 59 ruling was independently presented

Granite Heron timely joined its Rule 59 request within twenty-eight days after the October 15 judgment. Blue Ember opposed that request on its merits, and the district court addressed it after argument. Nothing about Rule 50(a) preservation deprived the court of authority to consider a properly filed motion for a new trial on all or some issues.

Judge Carver identified a clear-weight concern distinct from legal insufficiency. She believed the jury underweighted the concrete capacity offer, staged diligence, schedule benefit, and expert comparison, while recognizing that incomplete qualification and uncertainty remained. She therefore did not conditionally dictate a \$1,500,000 deduction; she ordered another trial of the financial questions.

Under *Atlas Food Systems & Services, Inc. v. Crane National Vendors, Inc.*, the trial court may weigh evidence and grant a new trial when the verdict is against the clear weight or would produce injustice. Appellate review is deferential. Blue Ember maintains its evidence supported the verdict, but the reasoned alternative ruling falls within the district judge's permissible discretion.

Reversing the JMOL thus activates, rather than invalidates, the condition. Rule 50(c)(2) directs that the new trial proceed unless this court orders otherwise.

The district court applied the correct weight standard

Granite Heron's response accurately distinguishes the JMOL and new-trial analyses. The district order described Cobalt Finch's identified slot and capability, the transfer milestones, another sponsor's later booking, the expected schedule advantage, and the incremental commitment. It also acknowledged the uncompleted controls and absence of certainty.

That balance shows the court did not use Rule 59 merely as a fallback label for its sufficiency ruling. It weighed the competing proof and concluded the jury's financial answers deserved reconsideration. The new trial leaves the result open and requires Granite Heron to carry its affirmative-defense burden again.

Blue Ember does not concede that \$1,500,000 is correct or that a reasonable sponsor necessarily would have committed. Affirming the conditional ruling means only that the district judge acted within the broad discretion recognized by *Atlas Food Systems*. The new jury may accept, reject, or revise either party's model based on the evidence admitted at retrial.

This distinction is why the appellate judgment should separately reverse JMOL and affirm the new-trial component. A single label such as "reversed" would fail to state which district decisions remain operative and could create confusion on remand.

Gross damages and mitigation must be retried together

The conditional scope follows both the verdict form and the proof. Liability and causation were decided before the financial questions and rest on custody, monitoring, quality, and contractual evidence distinct from the Cobalt Finch response. No party identifies an inconsistent finding or compromise that would make preservation of those answers unjust.

Gross damages and mitigation interact more closely. Park's avoided-delay model begins with Brooks's bounded gross-delay baseline. The net calculation subtracts alternate-production cost and retains residual disruption. A second jury asked only to choose a mitigation deduction would inherit disputed gross assumptions without the ability to resolve them.

The district court sensibly reopened the lot, replacement, delay, and mitigation amounts together while fixing that Granite Heron breached and caused compensable loss. *Atlas Food Systems* requires retried and retained issues to be distinct and separable without confusion or injustice. *Rice v. Community Health Association* confirms that a damages-only retrial is proper when that safeguard is met.

This limited proceeding preserves economy and repose on liability while allowing a coherent financial presentation. It does not grant Granite Heron another chance to deny the Fletcher event or causal responsibility, and it does not bind the new jury to either prior dollar figure.

The judgment must identify every operative consequence

Reversal of mitigation JMOL eliminates the foundation of the December 15 amended \$2,700,000 amount. Affirmance of the conditional Rule 59 ruling makes a new trial operative under Rule 50(c)(2). Affirmance of the damages-only scope fixes liability and causation while defining what the district court must retry. Vacatur and remand then clear the amended judgment and return jurisdiction for that proceeding.

The original \$3,900,000 judgment does not become immediately enforceable as the final recovery. That number rested on the first verdict, but the affirmed conditional order requires a new financial verdict once JMOL is reversed. The amended amount likewise cannot remain because it embodies the reversed fixed deduction.

After mandate, Judge Carver should conduct a trial of gross damages and mitigation under the settled breach and causation findings. Granite Heron bears the mitigation burden. The district court then enters a new judgment based on the resulting net award. This sequence gives full effect to each component without conflating preservation, evidentiary weight, scope, and remedy.

Granite Heron's alternative position agrees with that structure. There is therefore no adversarial basis to cancel the conditional trial if the panel reverses JMOL.

Conclusion and certification

The actual record contains no pre-verdict request for mitigation judgment. Both Rule 50(a) motions challenged causation only, expressly excluded the affirmative defense, and left the amount to jurors. Under *Plyler*, that distinct postverdict basis is unavailable even though the preserved general causation challenge remains reviewable. *Wiener* permits variation between a preserved Rule 50(b) issue and appellate theory; it does not cure the missing Rule 50(a) basis.

The court should therefore reverse mitigation JMOL. It should separately affirm the district judge's independently reasoned conditional Rule 59 new trial and affirm the limitation of that trial to gross damages and mitigation. It should vacate the amended judgment and remand for the financial proceeding required by Rule 50(c)(2). Liability and causation remain fixed; neither existing net amount is immediately payable as the final recovery.

Maya Holt and Jonas Bell of Holt Bell PLLC submit this reply for Blue Ember Biologics, LLC. Counsel certify electronic filing on April 20, 2026 under docket SYN-CA4-26-CV-4105 and service through the court system on Eli Mercer and Tara Webb of Mercer Webb PLLC. The brief contains no sealed material and relies only on the certified actual record and authorities available as of filing. The requested ruling preserves the general sufficiency issue actually raised while rejecting only the later distinct mitigation basis.